Q. Please state your name, occupation, and business address?

A. My name is Andy Anderson. I am a member of the Board of Directors of the New York Energy Consumers Council, Inc. ("NYECC"), which is located on the 22nd floor at 1 Pennsylvania Plaza, New York, New York, 10119. I have been on the Board of Directors for the past eleven years. Currently, I am also an Executive Vice President, Energy & Sustainability and Chief Sustainability Officer, at Tango Analytics, which is located at 9797 Rombauer Road, #450, Coppell, Tx 75019. Previously, I was the Chief Executive Officer at WatchWire, f/k/a EnergyWatch, which was located at 1261 Broadway, Suite 510, New York, NY 10001. Tango Analytics acquired WatchWire in August 2023 and WatchWire is now WatchWire by Tango.

Q. On whose behalf are you appearing in this proceeding?

A. I am appearing on behalf of the New York Energy Consumers Council, Inc. (NYECC), which was created on July 30, 2004 as a result of the consolidation of the Owners Committee on Electric Rates (OCER) and the New York Energy Buyers Forum (NYEBF). NYECC's members represent a broad spectrum of energy buyers, including hospitals, a university, a financial institution, residential and commercial real estate properties, energy service companies, and energy consultants.

Q. Have you previously submitted testimony in a proceeding before the New York State Public Service Commission ("PSC" or the "Commission")?

A. Yes, I have previously submitted testimony to the Commission on behalf of NYECC in PSC proceeding matter numbers 22-E-0064, 22-G-0065 and 22-S-0659.

Q. Please describe your educational background and relevant work experience.

A. I graduated from Franklin & Marshall College in Lancaster, Pennsylvania with a Bachelor of Arts degree in Economics and from Columbia Business School in New York, New York with a Master's degree in Business Administration. WatchWire by Tango is a private equity backed provider of sustainability and energy management software-as-a-service and associated professional services to large commercial and corporate real estate, retail portfolios, industrial energy consumers, municipalities, educational institutions, and more. At Watchwire by Tango, I work with more than 2 billion square feet of real estate across more than 70 countries, including nearly 150 million square feet of office space in New York City, representing more than $5 billion in annual energy spend. Over the past 16 years, I have helped clients manage their energy data in preparation for local, state,

and federal benchmarking and performance laws, reduce energy consumption and spend via tariff and procurement optimization, measure and verify energy conservation measures, and participate in numerous sustainability reporting benchmarks, standards, and frameworks, such as ENERGY STAR Portfolio Manager, GRESB, CDP, SBTi, SASB, GRI and TCFD.

Q. What are your responsibilities as a Director of NYECC?

A. As one of NYECC's Directors, I attend and engage with the other Directors and members at NYECC's monthly Board of Directors meetings and other events, I have served on NYECC's Committees, and am providing this testimony as service to the Board and to NYECC's membership. The New York Energy Consumers Council is focused and continues to focus primarily on the needs of energy consumers in Con Edison's service territory.

Q. Do you have any other experience?

Yes, I am, and have been, an Adjunct Professor at NYU's Center for Global Affairs Master's program, for the past seven years, teaching *Energy & Sustainability Management for Portfolios: Putting Policy Into Practice.* I am also a LEED AP O+M, an AEE CEM and CMVP. LEED AP O+M is an accreditation from the US Green Building Council that Distinguishes professionals implementing sustainable practices,

improving performance, heightening efficiency and reducing environmental impact in existing buildings through enhanced operations and maintenance. AEE, the Association of Energy Engineers, manages the CEM and CMVP credentials. The CEM credential, or Certified Energy Manager, indicates an individual has extensive knowledge of optimizing energy performance of buildings, helping companies decarbonize, and progress their sustainability goals. The CMVP credential, or Certified Measurement and Verification Professional, indicates a professional who understands best practices for measurement and verification to evaluate the performance of efficiency projects and understands International Performance Measurement and Verification (IPMVP) standards and ASHRAE Guideline 14 standards.

Q. Do you have any introductory comments to make as to natural gas rates in Con Edison's service territory as compared with natural gas rates elsewhere in the United States?

A. Yes. Natural gas consumers in New York City and the County of Westchester continue to pay among the highest natural gas rates that consumers pay anywhere else in the continental United States. On January 17, 2025, the Bureau of Labor Statistics of the United States Department of Labor reported that the average price paid in December

2024 by New York area consumers for utility (piped) gas, commonly referred to as natural gas, was $1.869 per therm, 22.8% more than the nationwide average of $1.522 per therm. In December 2023, area natural gas prices were 13.4 percent above the national average. Over the past five Decembers, New York area prices for utility (piped) gas have been at least seven percent above the national average. See Exhibit __ (AA-1).

Q. Are you concerned that investors may not look to invest in utility stocks, and in Con Edison in particular, under current stock market uncertainty, if the Commission does not give the Company its requested increase?

A. No, I am not concerned. First, on January 16, 2025, Con Edison declared an increased quarterly dividend of 85 cents a share on its common stock for the 51st consecutive year, the longest period of consecutive annual dividend increases of any utility in the S&P 500 index. See Exhibit __ (AA-2). In doing so, Con Edison continues to remain as a member of the exclusive S&P 500 Dividend Aristocrats index, which is comprised of current members of the S&P 500, with 25+ years of consecutive dividend increases. These companies have high-quality business models that have stood the test of time and show a remarkable ability to raise dividends every year regardless of

the economy. Con Edison is among only three utilities on the list of S&P 500 Dividends Aristocrats. Con Edison is about as consistent a dividend stock as they come with its 100+ years of steady dividends and its 51 years of annual dividend increases, including during the Great Recession of 2007-2010 and again in 2020 and since then with the ongoing coronavirus pandemic. Con Edison is also a Dividend King, considered to be the ultimate dividend growth stocks, which are stocks with 50+ years of continuous dividend increases. Consolidated Edison is in strong financial condition. It has an investment-grade credit rating of A-, and a modest capital structure with balanced debt maturities over the next several years. The Company's current dividend yield is an impressive 3.3%. See Exhibit __ (AA-3).

Q. Please summarize your testimony?

A. The primary focus of my testimony is to emphasize the importance of minimizing the economic burden and bill impact upon natural gas consumers especially many of NYECC's members who are among the largest natural gas energy consumers, located within Con Edison's service territory, and to discuss Con Edison's testimony regarding its proposed increase in the revenue requirement, additional cost burdens to gas ratepayers, and the need for further cost mitigation. The testimony provides examples where Con Edison can do more with less

and examples where Con Edison has failed to adequately support its requests for funding of certain programs.

Q. How much of an increase is Con Edison seeking in its revenue requirement in this gas rate case for the rate year ending December 31, 2026?

A. In its original January 31, 2025 filing, Con Edison requested an increase for Rate Year 1 ending December 31, 2026 in the amount of $441 million. In Con Edison's April 10, 2025 preliminary gas update, the Company decreased its previously proposed Rate Year 1 increase amount by approximately $91.5 million, resulting in a new increase request of $349 million. An approach to mitigate the Company's gas rate request will be necessary and essential in this case, as in other previous Company gas rate requests, in order to prevent unjust and unreasonable rates to customers. The Company continues to operate as a natural monopoly with its own exclusive service area with apparently little real concern of its obligations to operate within the already significant amount in billions of dollars it already receives annually in rates from gas ratepayers.

Q. How much has the Company received and continues to receive in the aggregate in revenue requirement amounts under the three rate years of the current rate plan in Case 22-G-0065?

A. In 2023 (rate year one), the total gas sales revenue amount received by the Company as reported and confirmed by the Company was 2 Billion, 829 Million dollars ($2,829,000,000). In 2024 (rate year two), the total gas sales revenue amount received by the Company was 2 Billion, 834 Million dollars ($2,834,000,000). See Exhibit __ (AA-5). At the end of the current three-year gas rate plan the Company will have received in excess of approximately $8.5 Billion from gas ratepayers in sales revenue.

Q. Can you give an example that verifies NYECC's concerns that Con Edison's planning and level of preparedness can be significantly improved by becoming more proactive rather than simply reactive in addressing issues of importance that arise during an existing rate plan and that the Company is quite capable of self-correcting and improving its performance without the need for additional ratepayer funding?

A. Yes. The Company in its April 10, 2025 Customer Operations Update Testimony stated that the Company arrived at need for 105 fewer FTEs for the Arrears Management Program. The Company further stated that this reduction is due to the better-than-expected reductions in arrears seen through this early stage of the Company's arrears management plan. Through February 2025, the arrears balance was

approximately $1.4 billion for approximately 500,000 customers in arrears, compared to an initial forecast for February arrears of $1.65 billion. In a discovery response to NYECC, the Company stated that "[t]he month-end [arrears] balance for March 2025 was 452,824 customers in arrears for $1,339,951,710," and the "month-end April 2025 arrears balance projection is $1.33 billion" with "the actual number of customers in arrears as of April 26, 2025, was 430,643." In addition, "[t]he Company's month-end May 2025 arrears balance projection is $1.29 billion" and "[t]he Company's month-end June 2025 arrears balance projection is $1.26 billion." See Exhibit __ (AA-6).

Q. What is the Company's explanation of the reasons(s) for the better-than-expected reductions in arrears and did the Company use its current resources any differently to achieve the reported reductions.

A. The Company said that it applied a multi-pronged strategy to achieve the reported reduction in arrears. This includes increased field collections, expanded use of digital engagement, and outbound dialing to customers in arrears. The Company also hired additional resources as part of its arrears management plan beginning in 2024 and continuing in 2025 to execute this strategy. According to the

Company, results have been better than expected due in part to a higher percentage of accounts making payments toward their arrears balances in response to email communications than originally forecast. Specifically, the Company forecast that 25% of both residential and non-residential customers would make payments in response to email communications; the actual results were 77% of non-residential and 65% of residential customers contacted. This results in fewer accounts requiring fielding, which freed collectors to address other accounts. Additionally, the Company has re-trained its CSRs on payment arrangement terms, implemented updates to its collection notices and bill messaging to educate customers on the collections process, and increased its direct engagement with large commercial customers in arrears. See Exhibit __ (AA-6).

Q. Do you reach the same conclusion as the Company that more resources are needed to slow the growth of arrears and begin to reduce the number of accounts in arrears?

A. No, I do not.

Q. Why do you disagree with the Company?

A. The Company disingenuously claims that it did not achieve the better-than-anticipated level of arrears reductions with existing resources despite the fact that no additional ratepayer funding was needed to

reduce both the level of arrears and the number of customers in arrears. The Company defining resources as hiring additional resources (i.e. additional people) as part of its arrears management plan beginning in 2024 and continuing in 2025, does not mean that Con Edison did so with additional resources in the form of additional ratepayer dollars. In other words, the Company made do with the resources available to it under the current rate plans without additional ratepayer funding. See Exhibit __ (AA-6). This is a very good example of the Company's demonstrated proven ability using its current ratepayer funding resources to reduce arrears to better-than-expected reductions and thereby accomplish more with less ratepayer funding when it wants, or needs, to do so.

Q. Do you think a 1% productivity adjustment is sufficient given this Company demonstrated ability to achieve needed results without additional ratepayer funding when it wants to or needs to?

A. No, I do not. A larger 2% productivity adjustment instead would not only ensure that ratepayers receive more of the productivity gains made by the Company during a rate year or in a multi-year rate plan, but will also encourage the Company to proactively seek out even more productivity measures than it may otherwise have if the

productivity adjustment continues in the business-as-usual manner at 1%.

Q. Do you see any serious efforts on the part of the Company to mitigate the current proposed rate increases in this rate case?

A. No, I do not. Given the level of increase to the revenue requirement proposed by the Company in its filings there is an appreciable dearth of any such serious mitigation.

Q. Are you in favor of Con Edison's proposals in its testimonies for Company incentives, also known as, Earnings Adjustment Mechanism or EAMs ?

A. No, I am not. Earnings Adjustment Mechanisms are typically the product of a negotiated settlement with the Company. No such negotiations have occurred and there is no resulting Joint Proposal recommending adoption of any Company EAMs. Therefore, the Company's testimonial requests are premature at best, absent satisfaction of the essential prerequisites needed and mentioned above.

Q. Would you be in favor of Con Edison's proposals for Company incentives, also known as, Earnings Adjustment Mechanism or EAMs made part of negotiations between the Company and the active parties?

A. Perhaps. The Company needs to understand that not only is it not entitled to any EAM irrespective of whatever EAM it may have previously received in prior rate cases, but that any EAM must be viewed not only based upon its specified terms, but also in terms of the overall rate case. However, in the instant rate case, the revenue requirement needs to be drastically reduced from the Company's current request before EAMs may be considered. Also, individual EAM measures proposed need to be justified on the basis of net savings to ratepayers that outweigh the costs to ratepayers if targets are achieved, are reasonable in scope and in amount relative to the revenue requirement increase and only for items for which the Company is not already receiving compensation in rates and only for items that are within the Company's control and effort. Con Edison should not be provided incentives for pre-existing obligations to its customers for which it is already being compensated for in rates, nor should it be compensated for items beyond the Company's control and efforts. The obligation to provide safe and reliable service to customers at just and reasonable rates does not entitle the Company to any double recovery in both rates and incentives, nor for the efforts of other parties acting independently of the Company. If the Company does not properly plan and allocate the just and reasonable resources

allotted to it by the Commission, as required, then there is significant value in the Company and its shareholders knowing that the consequences for such failures, include that the Company's ratepayers will not be asked by the Commission to pay for such failures, especially during an existing rate plan. Any measures used for incentives should be objectively reasonable and not easily attainable. In any limited circumstance where customers are asked to bear such costs, they should be related to truly "exceptional" utility service and performance, preferably within the Company's control and effort, which is significantly beyond what is expected and afforded in rates, and costs to ratepayers should be reasonably limited. Ratepayers should never be treated as an inexhaustible source of revenue and/or incentives for the utility resulting in unjust and unreasonable rates. The Commission should consider eliminating additional EAMs that it finds are no longer needed as it did with the interconnection EAM in Case 16-M-0429 on April 18, 2019.

Q. Can you give an example of a proposed EAM that should not be adopted?

A. Yes. Because the Company believes it is already completing transportation electrification projects on a timely basis, the need for an EAM to benefit Company shareholders at the expense of ratepayers for

something the Company is already doing and probably can easily improve and build upon further is unreasonable. The Company is mistaken in its apparent belief that continuing to improve upon processes and reducing timelines which will assist in meeting customer's expectations and needs is something that is not currently part of its underlying obligation to customers and for which it needs to be additionally compensated beyond the revenue requirement in the form of an EAM. See Exhibit __ (AA-7).

Q. Do you support the Company's $3.8 Million Rate Case Enhancement Project with an estimated completion date of 12/31/2029 to be allocated 87% to electric and 13% to gas?

A. No, I do not, because there is no projected direct cost savings associated with this project. The Company also does not commit to going forward with this project irrespective of whether it receives ratepayer funding for it in the rate cases, and the project would be completed outside the scope of any current rate plan. See Exhibit __ (AA-9).

Q. Do you agree with the Company's position that there is no need for a cost-benefit analysis for the separately proposed Clean Energy Mapping Platform project for an anticipated capital cost of $185 Million from 2026-2030?

A. No, I do not. First, the Company should not be allowed to recover the cost of any project containing a simple term such as "Clean Energy" that the Company cannot define. See Exhibit __ (AA-8). Second, although the Company states that after 2028, which is beyond the scope of any rate plan that may be proposed in this rate case, ESRI will no longer provide security patches and updates to the GN platform, the Company also states the very significant exception that extended support services can be requested and which the Company intends to request. Therefore, it does appear that proceeding with this project absent a cost benefit analysis at such a significant cost at this time is not in the best interest of ratepayers. See Exhibit __ (AA-10).

Q. What do you think about the Company's forecasted average cost per foot of main in Westchester of $830 and forecasted 7,920 feet of main to be constructed for 2026?

A. Both the forecasted average cost per foot of main and the number of feet of main to be constructed appear excessive. Significantly, the 2024 average actual cost per foot of main in Westchester was $140 with larger customer payments at the end of the year. The Company does not know and does not consider that there will not be similarly large customer payments at the end of 2026. In addition, the prior five-year average unit cost was $531, which is lower than the

Company's forecast. Also, the 2024 actual feet of main constructed in Westchester totaled 4,174 feet, making the feet of main forecasted to be constructed in 2026, 90 percent more in 2026 than in 2024. In addition, since the lifting of the moratorium, new cases have been generating required main footage that aligns with a reduced historical average. See Exhibit __ (AA-14). Therefore, the Company's forecasted numbers for Westchester as to the average cost per foot of main and footage of main construction for 2026 are overstated and properly disallowed.

Q. Do you agree with the Company's depreciation proposal for "moderate" reductions for service lives and do you believe the Company's concerns related to the cost impact for current customers?

A. No, I do not. The Company is more concerned about the cost impact of depreciation service lives on future ratepayers in 2030 and 2050, beyond the scope of any current rate plan, than it is for current ratepayers. Based upon the excessive revenue requirements proposed by the Company in these rate cases, the Company's depreciation proposal for reductions in service lives cannot be accepted based upon the unnecessary and contributory excessive cost impact on current customers. See Exhibit __ (AA-15).

Q. What do you think about the reported increase in lost and unaccounted for (LAUF) gas for the 12-month period ending August 2024 and the resulting investigation?

A. For a utility claiming to care about climate change and the CLCPA, an increase in LAUF gas is disturbing. It also appears that not only does the Company not have a handle on the source for this increase but that there may be multiple potential sources that are causing the increase, which is further cause for concern. Perhaps the penalties for increases in LAUF gas need to be revisited in this rate case to better focus the Company's attention in facilitating faster detection and action by the Company on preventative measures going forward. See Exhibit __ (AA-16).

Q. Do you agree with the Company's proposal to spend an extra $800,000 above the cost of traditional gas supplies per year to purchase "Differentiated Natural Gas"?

A. Absolutely not. While the cost is seemingly small relative to the massive amounts being requested in these rate cases, these are still dollars being paid by ratepayers whatever the amount and no amount of ratepayer funding should be wasted when it costs nothing, or almost nothing, to qualify as differentiated natural gas. Exhibit __ (AA-17).

Q. Do you agree with the Company's modifying the traditional approach to forecast NYC property taxes to forecast rate year and subsequent rate year NYC property taxes in the current rate case proceedings?

A. No, I do not. The lower NYC Class 3 property tax rate for fiscal year 2024/2025 when compared to fiscal year 2023/2024 is not an outlier as claimed by the Company, but is instead an example of the normal fluctuations that NYC property taxes may take in any given fiscal year. See Exhibit __ (AA-18).

Q. Do you also disagree with the Company changing the methodology to forecast the Class 4 property tax rate from the traditional approach, despite the fact that the NYC Class 4 property tax rate for Fiscal Year 2024/2025 was not identified as an outlier?

A. Yes, I do. The Company is using its justification of an alleged outlier for NYC Class 3 property tax rate for fiscal year 2024/2025 as a basis for changing the methodology to forecast NYC Class 4 property tax rate for fiscal 2024/2025, which it concedes is not an outlier. Significantly, the Company was unwilling to commit to where it would draw the line for assertion of an outlier for a downward or upward

fluctuation and explain the reason(s) for any such line drawing. See Exhibit __ (AA-18).

Q. Do you think that the parties and the Commission should simply accept Company assertions for funding projects without providing a stated basis and support as requested?

A. No, I do not.

Q. Can you give an example where the Company was asked for the basis and support of assertions made and failed to provide the information requested?

A. Yes, I can. The Company in an original discovery response to Department of Public Service Staff claimed absent the work the Company requested for the AMI Communication Network Steady-State" project, the network would degrade over time, and provided what a 1% degradation would correspond to in terms of communication devices and AMI meters affected. When asked by NYECC in a follow up discovery request to provide the expected percentage degradation in RY1, RY2 and RY3 and to provide the basis and support for its assertion, the Company only provided an approximate percentage based upon an assumed degradation of devices without any factual basis and support requested. Therefore, this project funding request and any other project funding request that

relies on unsupported assumptions and is/are without a factual basis and support should be denied. See Exhibit __ (AA-19).

Q. Do you agree with the Company's funding requests for its Technology Modernization Program – Applications and Infrastructure?

A. No, I do not. The Company admits that the current state of service reliability at Con Edison is adequate and meets existing operational standards, that its infrastructure is designed to support critical applications and services, provide high availability, reliability, and performance, which has allowed the Company to maintain operational standards and provide the necessary resources for various business units. Also, the Company's IT responses to operational events are generally adequate, and the Company's IT availability of critical services is generally adequate. Also, any limitations in the Company's current system monitoring have not resulted in unplanned downtime. Therefore, it would appear that the funding requested in this category can be excised in the interest of reaching a reasonable revenue requirement in this rate case. See Exhibit __ (AA-23).

Q. Do you agree with the incremental full time equivalents (FTEs) that the Company is seeking in 2016 and beyond?

A. No, I do not. The Company is seeking 2,415 incremental full time equivalent (FTEs) employees in the Rate Year (2026), or a 17.5% increase over the Company Historic Test Year employee level. See Exhibit __ (AA-24). Such an excessive percentage increase request for 2026 and beyond is unprecedented and should be rejected especially since the Company in most instances does not sufficiently justify the incremental FTEs requested. In addition, while the Company claims the FTEs requested are for incremental work forecasted, it also modifies its claim by stating that they are "generally" for this purpose, without quantification. Incongruously, despite such a massive request in FTEs, the Company nonetheless asserts that it does not expect significant change in existing overtime, in existing contractor use, and in existing efficiency, and that delay or cancellation of even an offshore wind project(s) does not alter the anticipated resource needs identified by the Company. See Exhibit __ (AA-24). As mentioned earlier in this testimony, the Company is quite capable of doing far more with the very significant billions of dollars in resources that ratepayers are already providing to it and the number of FTEs that the Company decides in its discretion to utilize for the purposes it requires. The same holds true prospectively for the Company in the current rate cases. For instance, the Company concedes there was no specific

number of Information Technology (IT) FTEs for which the Company received funding in the last electric/gas rate cases. Funding levels for overall capital and O&M programs were provided, which the Company has staffed accordingly, as well as for any emerging issues that have developed since the Commission order which approved those funding levels. See Exhibit __ (AA-25). Finally, while the Company's overall percentage increase in incremental FTEs is unprecedented, even more unprecedented are the percentage increases in incremental FTEs for individual Company programs. For example, the Company IT Enterprise Data and Analytics group seeks an increase in FTEs of 71%. See Exhibit __ (AA-28).

Q. Are there other reasons for rejecting the Company's unprecedented request for incremental FTEs?

A. There are many. The Company often claims that its existing FTEs do not have the capacity to handle the increased needs in upcoming rate years. However, simply listing job responsibilities for requested FTEs for job responsibilities already performed by existing FTEs without quantification of any kind is not justification. See Exhibit __ (AA-26). Not surprisingly, the Company sees the need for more FTEs more during pending rate cases than during previous existing rate plans. For example, before the current rate cases, the number of FTEs were not

increased to resolve billing issues for more than seven years. See Exhibit __ (AA-27). The Company typically responds that it does not know how many of the requested FTEs it will hire if it does not receive funding for the requested resources, has not hired any of the requested FTE resources to date, and concedes a fungibility of the Company's resources and FTEs in their being used interchangeably for different platforms or programs for the Company on an as needed Company basis. See Exhibit __ (AA-28). The Company also does not typically perform a cost-benefit analysis to provide justification for requested FTEs. See Exhibit __ (AA-29).

Q. Should a reduction in the incremental FTEs requested by the Company result in further reductions to the Company's revenue requirement ask beyond the Company's request for incremental FTEs?

A. Yes. For example, the portion of the Company's requests for furniture and equipment for these incremental FTEs should be reduced in concomitant measure to the reduction in incremental FTEs.

Q. What are your thoughts about the additional FTEs sought by the Company for AMI meter and billing purposes?

A. My immediate thought is that ratepayers paid significantly more than a billion dollars for electric and gas AMI meters in which among the

touted benefits for AMI was a reduction in costs because there would be reduced manual billing activities. However, now we are being told, to the contrary, multiple reasons attempting to justify additional FTEs, that among other things, more resources are required to manage and analyze the AMI data effectively to maintain accuracy and reliability, none of which was/were ever mentioned in any analysis before the AMI had started to be implemented. See Exhibit __ (AA-30). It cannot be that ratepayers are told one thing before an extraordinary cost project like AMI is implemented and then told something different and contradictory, which was not disclosed before, after it is implemented. The Company needs to make its AMI meter and billing issues work with the significant resources it has already been provided and without additional FTEs, for which ratepayers were not warned would be an offset to the reduction in costs for reduced manual billing activities.

Q. Do you think the Company is capable of doing what it is supposed to do without additional ratepayer funded resources in this area?

A. Yes, I do. The Company has already demonstrated an ability to do so if there is a potential consequence to not doing so. Sometimes the Company needs a negative revenue adjustment mechanism to get them to do what needs to be done. For example, the existing rate

plan included a Negative Revenue Adjustment mechanism for customer bills that have been estimated or delayed longer than 125 days for which the Company incurred no violations and no negative revenue adjustment. See Exhibit __ (AA-30).

Q. Do you agree that the Company must always modernize and make upgrades to its existing technology at ratepayers' expense such as for example the funding request for the "IT OT Tower Sustainability" project?

A. No, I do not. These decisions need to be made on a case-by-case basis. However, the Company does not always have to have the latest and the greatest at more expense to ratepayers when current technology is adequately protected from cyber security threats, or when critical public-facing outage applications are adequate or sufficient, or when the Company has not had a significant data breach and therefore has not experienced either reputational or customer trust issues, or when adopting AI is not necessary to maintaining existing operational standards. See Exhibit __ (AA-32).

Q. Do you support the Company's funding request for the Grid Asset Reliability and Resilience Data and Analytics project?

A. No, I do not because the Company currently adequately predicts and appropriately plans for asset failures, the Company currently identifies

and performs predictive maintenance adequately based on current technology, and the Company currently detects faults adequately based on current technology. See Exhibit __ (AA-33).

Q. Do you support the Company's funding request for the Forecasting and Planning Data and Analytics program?

A. No, I do not because the Company currently utilizes predictive models, the Company currently models the impact of electrification on the electric peak demand forecast, the Company currently measures and reports the estimated impact of load modifiers, the Company annually reconciles load forecasts with weather-adjusted peaks, the Company's predictions to grid supply and demand are not inaccurate, the Company does not deploy capital sub-optimally within the existing analytical capabilities, the Company currently performs cross commodity forecasts that considers electrification impacts, and the Company's current analytic capabilities meet the needs for planning today. Exhibit __ (AA-34).

Q. Do you support the Company's funding request for the Supply Chain Data and Analytics program?

A. No, I do not because the Company currently has the capability to utilize data from multiple departments in analytics and is already doing so in existing analytics efforts, the Company does not deploy capital

sub-optimally within the bounds of its current analytical capabilities, and the Company's current analytics capabilities meet its current needs. Exhibit __ (AA-35).

Q. Do you support the Company's funding request for the Customer Engagement Platform project?

A. No, I do not because the Company's customer-facing employees currently handle complex customer transactions and the Company does not measure or track transaction complexity and cannot quantify this metric. In addition, improvements to current workflows are not necessary to maintain the Company's current operational standards, new features are not necessary to maintain the Company's current operational standards, streamlining repetitive tasks is not necessary to maintain the Company's current operational standards, eliminating the need to access multiple systems while serving customers is not necessary to maintain the Company's current operational standards, the Company has not identified customer satisfaction survey results or average call handling times that it seeks to achieve with the Customer Engagement Platform, and the Company cannot quantify potential financial benefits. See Exhibit __ (AA-36).

Q. Do you agree that Company planned investments or proposed programs claimed to support the achievement of the CLCPA's

goals and of clean energy goals require substantiation and quantification from the Company?

A. Yes, I do. The Company's inability to define "clean energy" has previously been addressed earlier in this testimony. See Exhibit __ (AA-8). The Company's cavalier attitude on clean energy extends to its addressing claims about the CLCPA factually. Instead of addressing the factual basis for its assertion on the CLCPA, the Company instead fails to factually quantify the Company's achievement of CLCPA goals through the existing versions of its IT programs thereby rendering its testimony in such areas factually unsupportable. See Exhibit __ (AA-37). Accordingly, such unsupported Company claims cannot be relied upon and to the extent funding requested is based upon those claims, the funding requested should be denied.

Q. Are there other costs that customers are paying for in addition to whatever the increase in rates will be in this rate case and that should be considered by the Commission in mitigating the size of any rate increase?

A. Yes, there are significant additional costs. For instance, customers are expected to also fund significant cost sums in other Commission rate case proceedings. See Exhibit ___ (AA-40).

Q. Is Con Edison also seeking an increase in its revenue requirement in this gas rate case for the additional rate years ending December 31, 2027 and 2028?

A. Yes, while the original Company filing was for a one-year rate plan, it intends to explore multi-year rate plans in settlement discussions with interested parties. The original proposed increases for two additional rate years in gas were $266 million in Rate Year 2 and $166 million in Rate Year 3. In Con Edison's April 10th preliminary gas update, the Company increased its previously proposed increase amount for Rate Year 2 by approximately $3.493 million, resulting in a new increase request for Rate Year 2 of $269.493 million, and increased its previously proposed increase amount for Rate Year 3 by approximately $8.440 million, resulting in a new increase request for Rate Year 3 of $174.440 million. Accordingly, based upon the latest amounts proposed by the Company, the very significant cumulative three-year impact of the Company's rate increase request on gas ratepayers is approximately $1.76 billion, which is still an astounding 64% cumulative three-year increase more than the previous cumulative three-year impact of $1.1232 billion, which ratepayers paid under the 2023-2025 Rate Plan and an astounding 76% cumulative three-year

increase more than the previous cumulative three-year impact of $1 billion, which ratepayers paid under the 2020-2022 Rate Plan.

Q. Does this conclude your testimony?

A. Yes.